

25NNCV04986 25NNCV04986

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-07

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Case Number: 25NNCV04986 Hearing Date: August 7, 2026 Dept: D

TENTATIVE RULING

Calendar: 11

Date: August 07, 2026

Case No: 25NNCV04986 Trial Date: n/a

Case Name: Unsell v. Kamali, et al.

PETITION TO CONFIRM MINOR'S COMPROMISE

[CCP § 372]

Moving Party: Petitioner, Ryan Unsell, parent and guardian ad litem for Odessa Unsell

Responding Party: Defendants, Sean Kamali and Falcon Car Care, Inc. [Unopposed]

RELIEF REQUESTED:

Approve minor's compromise.

CAUSES OF ACTION: from Complaint

1) Negligence

2) Negligence Per Se

3) Negligent Entrustment

4) Negligent Hiring, Training, Supervision and Retention

SUMMARY OF FACTS:

This action arises from an automobile-pedestrian collision that occurred on January 27, 2025. The Complaint alleges that plaintiffs Jessica Unsell and Odessa Unsell (collectively, "Plaintiffs") were walking eastbound within a marked pedestrian crosswalk on Verdugo Road, in the City of Glendale, when defendant Sean Kamali's vehicle lost power and failed to stop, striking Plaintiffs.

ANALYSIS:

Under Code of Civil Procedure section 372, any compromise of claim or action or disposition of proceeds of judgment made for a minor or adult with a disability must be approved by the Court. (See also Probate Code § 3600, subd. (b) [a compromise or covenant for a disputed claim or damages, money, or other property of a minor or person who lacks legal capacity is valid only after it has been approved by the superior court].) A petition for court approval of a compromise of a minor or disabled adult's compromise or judgment of a pending action or proceeding to which this person is a party must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. (CRC, rule 7.950; see also CRC, rules 7.950.5-7.955.)

The petition is generally submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person with a Disability (Judicial Council form MC-350). (CRC, rule 7.950.) If the Court is satisfied that the compromise, covenant, settlement, or disposition is in the best interest of the person, then the Court should approve the same. (See *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1338.)

Procedural Requirements

A review of the Petition shows that it meets all the requirements in CRC rules 7.950 to 7.955.

Rule 7.950

The Petition satisfies CRC, rule 7.950. The petition was filed on verified Civil Form MC-350 seeking approval of the settlement on behalf of Odessa Unsell ("Claimant") (Petition, p. 10 [Petitioner verification].) The Petition also contains a full disclosure of all information that bears upon the reasonableness of the compromise, covenant, settlement, or disposition. (Petition, §§ 5-8, Attach. 11(b)(6).) The Petition indicates the total settlement amount, the gross proceeds allocated to Claimant and the net proceeds allocated to Claimant. (Petition, §§ 10, 15-16.)

Rule 7.951

The Petition satisfies CRC, rule 7.951. This requirement provides that where a petitioner has been represented or assisted by an attorney in preparing the petition to compromise the claim or in any other respect with regard to the claim, the petition must disclose specific information, which the petition contains as follows:

(1) The name, state bar number, law firm, if any, and business address of the attorney. (Petition, p. 7, § 17.b.(1)-(3) [Gary A. Dordick, Esq. / Herjit Rubio, Esq, SBN Nos. 128008 / 298876, Dordick Law Corporation, 1122 Wilshire Blvd., Los Angeles, CA 90017].)

(2) Whether the attorney has received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, and, if so, the amounts and the identity of the person who paid the fees or other compensation. (Petition, p. 7, § 17.c. [has not been compensated].)

(3) Whether the attorney became involved with the petition, directly or indirectly, at the instance of any party against whom the claim is asserted or of any party's insurance carrier. (Petition, p. 7, § 17.d. [did not so become involved].)

(4) Whether the attorney represents or is employed by any other party or any insurance carrier involved in the matter. (Petition, p. 7, § 17.e, Attach. 17e [is representing another party].)

(5) If the attorney has not received any attorney's fees or other compensation for services provided in connection with the claim giving rise to the petition or with the preparation of the petition, whether the attorney expects to receive any fees or other compensation for these services, and, if so, the amounts and the identity of the person who is expected to pay the fees or other compensation. (Petition, p. 7, § 17.f [does expect to receive attorney's fees in the amount of \$388,000.00 from Plaintiff Jessica Unsell].)

(6) The terms of any agreement between the petitioner and the attorney. (Petition, p. 7 § 17.a.(2), Attach 13(a) [stating compensation amount of 33.33% of Claimant's recovery, amounting to compensation request here of \$10,000.00].)

Rule 7.952

CRC, rule 7.952 requires the person petitioning for approval of the compromise of the claim on behalf of the minor and the minor to attend the hearing on the petition unless the court for good cause dispenses with their personal appearance.

The Court finds that good cause dispenses with the need for Petitioner or Claimant to attend the hearing on this matter.

Rule 7.953

The Petition satisfies CRC, rule 7.953. This rule provides that, where ordered by the Court, an order for the deposit of funds of a minor or a person with a disability with a financial institution must be provided.

Petitioner has filed a Civil Form MC-355 Order to Deposit Funds in a Blocked Account.

Rule 7.954

The Petition need not satisfy California Rules of Court, rule 7.954. This rule provides the requirements for requesting the withdrawal of funds already deposited in favor of a minor or person with a disability pursuant to a prior compromise, which is not the case here.

Rules of Court, rule 7.955

The Petition satisfies CRC, rule 7.955. This rule requires that the Court determine whether the attorney's fees charged of a minor or a person with a disability are reasonable. Here, the fees to be charged from Claimant are 33.33% of the gross settlement amount to be paid to her. (compare Petition, § 16.a with § 16.c.) Counsel includes a declaration explaining the

basis for the request, including a discussion of the applicable factors listed in CRC, rule 7.955 subd. (b). (Petition, Attach. 13a.)

Substantive Requirements

The Court finds that the judgment allocation is in the best interests of Claimant. (See Pearson v. Superior Court, supra, 202 Cal.App.4th at p. 1338.) The total settlement amount is \$1,000,000.00. (Petition, § 11(b)(6).) \$30,000.00 is to be allocated to the Claimant, and the remaining \$970,000.00 is to be allocated to Plaintiff Jessica Unsell. (Petition, p. 3, § 10.c.) The apportionment is based on the relative nature and extent of the parties' respective injuries. (Petition, Attach. 11(b)(6).) As the vehicle approached, Plaintiff Jessica Unsell pushed Claimant Odessa Unsell out of the path of the vehicle and, in doing so, absorbed the majority of the impact herself. (Petition, Attach. 11(b)(6).) Claimant's injuries were less severe than those sustained by Jessica Unsell and required a less extensive course of treatment. (Petition, Attach. 11(b)(6).)

Thus, the Court is satisfied that the Petition is in the best of interest of Claimant.

RULING:

The Petition to Approve Minor's Compromise of Claim is GRANTED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.